

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. ABNER POMAR
Case No. CL26-01283**

Demurrer

TENTATIVE RULING

Defendant ABNER POMAR demurs to Plaintiff CAPITAL ONE, N.A.'s complaint alleging breach of contract.

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians’ Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The complaint at hand sufficiently alleges all elements of breach of contract. It states that on June 5, 2019 the parties entered in a written contract. It attaches a copy of that contract so the terms can be seen. It states Plaintiff's performance via provision of a line of credit and Defendant's breach on February 5, 2025 via nonpayment. It states Plaintiff's damages as \$15,214.92.

Defendant's claim that there is an arbitration agreement in the contract is a matter for a motion to compel arbitration, not a demurrer.

Defendant's demurrer is overruled.

TOP GLASS, LLC v. FACTORY OS, INC., ET AL.
Case No. CU23-04060

Motion to Amend Judgment

TENTATIVE RULING

Judgment Creditor Top Glass LLC's motion to amend the judgment to add Harbinger Production, Inc. and Harbinger Group, Inc. as additional judgment debtors is granted in part and denied in part.

A court has the authority to amend a judgment to add a judgment debtor pursuant to Code of Civil Procedure section 187. (*Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal.App.4th 14, 20.) The procedure is an appropriate method "by which to bind new individual defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit." (*McClellan v. Northridge Park Townhome Owners Ass'n* (2001) 89 Cal.App.4th 746, 752.) It may be used when a successor corporation is shown to be a continuation of the predecessor corporation or the transaction appears to have been entered into fraudulently to escape liability for debts. (*Id.* at 753-755.)

The court finds that Harbinger Production, Inc. is merely a continuation of Judgment Creditor. Judgment Creditor establishes that Judgment Debtor assigned its assets to Harbinger Production, Inc. while its action was pending against Judgment Debtor. (Decl. of Gabriel, ¶ 6, Exh. 1.) Harbinger Production, Inc. appears to have the same executive staff as Judgment Debtor. (*Id.* at ¶ 7.) Harbinger Production, Inc. shares the same principal address as Judgment Debtor. (*Ibid.*) Accordingly, Harbinger Production, Inc. shall be added as a judgment debtor.

However, the motion is denied as to Harbinger Group, Inc. Not only has Harbinger Group, Inc. not been served with the motion papers (Proof of Service (6/3/26)), Judgment Creditor establishes only that Harbinger Group, Inc. is merely the parent company of Harbinger Production, Inc. and that Harbinger Group, Inc. provided Harbinger Production, Inc. with some funding. (Decl. of Gabriel, ¶ 8.) A parent corporation is not exposed to liability for the obligations of a subsidiary simply because the parent contributed funds to the subsidiary to assist the subsidiary in meeting its financial obligations and not to perpetuate a fraud. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.)

HORMIGAS v. STERLING ASSET MANAGEMENT COMPANY
Case No. CU25-03830

Motion And Motion to Compel Defendant Community Housing Opportunities Corporation to Respond to Plaintiff's Requests for Production of Documents, Set Two; Memorandum of Points and Authorities in Support Thereof; Request for Monetary Sanctions

TENTATIVE RULING

On its own motion, the Court continues this matter to September 22, 2026, at 9:00 a.m. in Department 3 to be heard concurrently with the three Motions to Compel, this matter is deemed submitted.

SWEENEY v. CAL. REG'L WATER QUALITY CONTROL BD., SAN FRANCISCO BAY REGION, ET AL.
Case No. FCS048136

Motion to Enforce Contempt Judgments; Motions to "Compel Production of a Post-Judgment Accounting"

TENTATIVE RULING

Motion to Enforce Contempt Judgment

Parties to appear.

Judge Carringer entered the following orders and judgments of contempt against Judgment Debtor John Sweeney:

- 1) on August 26, 2022 for willful disobedience of the court's May 20, 2022 discovery order, repeated failure to appear for examination, and willful disobedience with the CAO Injunction;

- 2) on March 22, 2023 for failure to provide financial statements in compliance with the court's August 24, 2022 turnover order;
- 3) on March 22, 2023 for continued failure to appear for examination;
- 4) on December 18, 2024 for additional failures to produce failures to produce records, and for selling a boat in March of 2023 on behalf of Point Buckler Club and guns in June of 2024 in violation of a September 2022 turnover order;
- 5) on December 18, 2024 for ongoing failure to produce verified responses and documents in violation of a March 2023 order compelling discovery responses;
- 6) on December 18, 2024 for continued failure to appear for examination; and
- 7) on December 18, 2024 for continued failure to comply with the CAO Injunction.

These orders and judgments are final and conclusive. (Code Civ. Proc. § 1222; *Moffat v. Moffat* (1980) 27 Cal.3d 645, 656.) But, "[o]rdinarily, when one is sentenced to imprisonment for contempt, the imprisonment begins to run at once". (*In re Applicant of Selowsky* (1919) 44 Cal.App. 421, 425.) It appears Judgment Debtor Sweeney served only two days of the concurrent five-day punitive contempt sentence from the March 22, 2023 contempt judgments and did not serve any portions of the coercive contempt sentences.

Since these judgments were entered, years have passed and circumstances have changed. For example, it appears that Point Buckler Island was sold by public auction (see, Acknowledgment of Partial Satisfaction of Judgment), making it unclear whether there can be any further acts within Judgment Debtor Sweeney's power to perform to comply with the CAO Injunction. And, although Judgment Debtor had failed to appear at many of the prior examination hearings, he has personally appeared at recent hearings. Therefore, Judgment Creditor shall appear at the hearing and be prepared to explain its position regarding which contempt judgments still require coercive sentences, and specify the conduct to be performed by (or the documents or information to be obtained from) Judgment Debtor Sweeney, for the Court's consideration.

Motions to "Compel Production of a Post-Judgment Accounting"

The motions to "compel production of a post-judgment accounting" filed by Judgment Debtor John Sweeney and Jennifer Frost are denied. These motions are not authorized by any statute or decisional authority.

LUIS R. GOMEZ v. RAJ KUMAR SHARMA and SUNRISE ORCHARDS
Case No. FCS055666 (consolidated with FCS059299, CU23-00585, CU23-05722)

SHARMA's Motion to Enforce Settlement Agreement

TENTATIVE RULING

RAJ KUMAR SHARMA ("SHARMA") and PHANI RAJA KUMAR MADAM ("MADAM") jointly move to enforce the global settlement agreement with LUIS R. GOMEZ ("GOMEZ") entered into before the court on March 5, 2026 and resolving cases FCS055666, FCS059299, CU23-00585, CU23-05722, and FCM176018.

The terms of the settlement agreement are as follows: GOMEZ agreed to purchase the property at 7403 Porter Road, Dixon, CA (the "Porter Property") with a down payment of \$655,000 to SHARMA as well as a \$25,000 down payment to MADAM. (Declaration of Jeffrey Arlen in support of Motion to Enforce Settlement ("Arlen Dec.") at ¶ 2, Exhibit 1 [transcript at 7:7-11].) The transaction was to close on or before May 5, 2026, with GOMEZ receiving title at time of closing. (*Ibid.* [at 6:24-7:3].) GOMEZ was also to execute a promissory note in SHARMA's favor for \$675,000 and in MADAM's favor for \$200,000, with both bearing five percent interest annually and payable in annual installments. (*Ibid.* [at 7:13-26].) GOMEZ was to be responsible for taxes and insurance on the Porter Property after closing. (*Ibid.* [at 9:10-27].) If GOMEZ failed to make any payments on those notes, taxes, or insurance SHARMA was to send GOMEZ notice and afford him sixty days to cure the deficiency; if the deficiency was not timely cured, then stipulated judgment would issue, GOMEZ would be evicted, and SHARMA would take possession of the Porter Property. (*Ibid.* [at 8:19-9:9].) Each side agreed to bear their own costs and attorneys' fees. (*Ibid.* [transcript at 6:20-21].)

The foregoing terms were made an enforceable order of the court not dependent on reduction to writing. (Arlen Dec. at ¶ 2, Exhibit 1 [at 12:6-18].)

Code of Civil Procedure section 664.6 provides that when parties to an action settle the case by executing a written settlement agreement outside the presence of the court, or orally before the court, the court may enter judgment pursuant to the terms of the settlement agreement. This statute provides a summary procedure for enforcing a settlement agreement without the need for a new lawsuit. (*Critzer v. Enos* (2010) 187 Cal.App.4th 1242, 1252.) In determining a motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 the court sits as a trier of fact and may enter the terms of the settlement agreement as a judgment. (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.)

The sale of the Porter Property did not close by the May 5, 2026 deadline. Examination of the declarations submitted in support of and in opposition to this motion shows that GOMEZ did not perform his obligations under the agreement. As the parties attempted to reduce the settlement agreement to writing (despite this not being a necessary step

for enforcement) GOMEZ refused to include the agreed-upon term that failure to make payments after closing would result in transfer of the Porter Property to SHARMA. (See, e.g., Declaration of Ali A. Aalaei in Support of Opposition (“Aalaei Dec.”) at ¶ 10, Exhibit G.) GOMEZ also misunderstood the agreement with regard to payments to MADAM, asserting that MADAM was to receive \$200,000 in total when the agreement was for MADAM to receive a \$25,000 down payment and a further \$200,000 promissory note. (*Ibid.*) GOMEZ also maintained that the promissory notes must be recorded after close of escrow for sake of preserving GOMEZ’s lender’s first-priority position but did not execute the notes despite the parties’ agreement on that point. (*Ibid.* [stating requirement notes be recorded after escrow]; Declaration of Mark Mitchell in Support of MADAM’s Reply (“Mitchell Dec.”) at ¶ 22, Exhibit 12 [stating agreement].) SHARMA and MADAM state their continued readiness to close the transaction now that they have been provided a purchase agreement form that does not represent Mr. Mitchell as a real estate broker. (Mitchell Dec. at ¶ 25, Exhibit 14; Aalaei Dec. at ¶ 9, Exhibit E.)

SHARMA and MADAM’s motion is granted as follows: GOMEZ is ordered to close the purchase of the Porter Property with the agreed down payments of \$655,000 to SHARMA and \$25,000 to MADAM within forty-five days of the date of this order.

GOMEZ is ordered to execute the agreed promissory note to SHARMA in the amount of \$675,000 and the agreed promissory note to MADAM in the amount of \$200,000 within forty-five days of the date of this order. SHARMA and MADAM are ordered to refrain from recording either promissory note until after close of escrow.

Failure by GOMEZ to observe the terms of the settlement agreement by the renewed deadline will result in judgment issuing against GOMEZ and granting immediate possession of the Porter Property to SHARMA, aligning with the clear intent of the settlement agreement that GOMEZ’s continued possession of the Porter Property is contingent on payment to SHARMA and MADAM and execution of promissory notes.

DO TKNN LLC v. NAZILA EDALATI
Case No. CU24-06943

Motion to Compel

TENTATIVE RULING

Parties to appear.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

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